

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of January 15, 2024 by and between Acme Technologies Inc., a Delaware corporation ("Disclosing Party") and John Smith, an individual residing at 42 Elm Street, Chicago, IL 60601 ("Receiving Party").

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any non-public information that Disclosing Party designates as being confidential or which, under the circumstances surrounding disclosure, the Receiving Party knows or has reason to know is confidential, including but not limited to: source code, algorithms, business plans, financial projections, customer lists, trade secrets, and technical specifications.

2. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to: (a) hold all Confidential Information in strict confidence; (b) not disclose such information to any third party without prior written consent; (c) use the Confidential Information solely for the purpose of evaluating a potential business relationship; (d) restrict access to those employees who have a need to know and who are bound by similar confidentiality obligations.

3. TERM AND TERMINATION

This Agreement shall remain in effect for a period of three (3) years from the date first written above. Upon termination or expiration, the Receiving Party shall promptly return or destroy all Confidential Information.

4. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The obligations of this Agreement do not apply to information that:

- (a) is or becomes publicly known through no wrongful act of the Receiving Party;
- (b) was rightfully known to the Receiving Party prior to disclosure;
- (c) is independently developed by the Receiving Party without use of the Confidential Information; or
- (d) is required to be disclosed by law or court order, provided that the Receiving Party gives Disclosing Party prompt written notice.

5. REMEDIES

The Receiving Party acknowledges that any breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or in equity.

6. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law provisions.

7. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior negotiations, representations, or agreements, whether oral or written.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date above.

Acme Technologies Inc.

By: _____

Name: Sarah Johnson, CEO

John Smith

Signature: _____

Date: _____